

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 09/16/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
5	30-2016-00885275 Dongtien LLC vs. Kopensky	The Court has read and considered Defendant Theresa A. Kopensky's Motion to Vacate Judgment and Renewal (ROA 54), Plaintiff's Opposition (ROA 63), and Defendant's Reply to Opposition (ROA 63). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 26), 12/21/2016 Minute Order (ROA 32), Return on Writ of Possession (ROA 40), Abstract of Judgment (ROA 42), Application for and Renewal of Judgment (ROA 46), and Proof of Service by Mail (ROA 51). The Court DENIES the Defendant's request to Strike the Plaintiff's Opposition. The Court sets this matter for an evidentiary hearing. Plaintiff's Counsel is ordered to provide the Court: (1) any proof of service or documentary evidence showing that the Defendant was served with the Abstract of Judgment or Judgment on or around March 2017. (2) When and how Plaintiff's counsel became aware of Defendant's address in San Diego County, because clearly the Plaintiff was aware of that address at minimum on March 8, 2017, based on ROA 42.

		Each counsel will be able to present their evidence to support their position. The Court orders the Defendant to be present in court. If the Defendant is unable to be present in court, an ex parte motion requesting remote appearance and the basis is to be filed with this Court at least 5 court days in advance of the hearing date. The Court set this matter for an evidentiary hearing on the Motion to Vacate for October 21, 2026 at 1:30 PM in Department C61. The Court Clerk is to provide notice of the Court's ruling.
6	30-2026-01592499 Mahgerefteh vs. Hawes	The Court has read and considered the Motion to Quash Service of Summons (ROA 13) and Plaintiff's Opposition (ROA 19). As this matter requires an evidentiary hearing as to the merits, as there is no rebuttable presumption, and as the person who served notice is not a registered process server, the Court will set this matter for an evidentiary hearing on 9/23/2026 at 1:30 PM in Dept. C61. Parties are ordered back for that date.
7	30-2026-01590215 TMP II Apts LLC vs. Lacy	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 7) and the Plaintiff's Opposition (ROA 18). The Court takes Judicial Notice of the Proof of Service of Summons-Personal (ROA 13). The Defendant filed the Motion to Quash Service of Summons as a boilerplate motion, without changing the information in the motion or providing relevant facts for this case. Filing a frivolous motion with the Court may warrant monetary sanctions. The Court finds the Motion frivolous because Defendant did not provide any facts related to this case in the motion and failed to review it for accuracy before submission. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Here, ROA 13 shows that a registered process server effectuated personal service on the Defendant on 8/21/2026 at 7:32 AM. Defendant provides no evidence to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Quash Service of Summons. Defendant is ordered to file a responsive pleading within 3 calendar days. The Court orders a shortened time period because Defendant filed a frivolous motion. Plaintiff is ordered to provide notice of the Court's ruling.
8	30-2026-01587609	The Court has read and considered the Defendant's Motion to Quash Service (ROA 16) and the Plaintiff's Opposition (ROA 22).